
8:30 a.m. Law and Motion

FRITCHMAN VS. MONDELEZ INTERNATIONAL HOLDINGS LLC, ET AL.

CASE NUMBER: 24CV-0204112

Tentative Ruling on Motion to Compel Further Responses to Requests for Production:

Plaintiff Sabrina Fritchman moves to compel Defendant Mondelez Global, LLC to provide further responses to Plaintiff's Requests for Production of Documents, Set One and for monetary sanctions. Defendant opposes the motion.

Meet and Confer. Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of attorney Saideh Ghasemi Moghadam establishes compliance with this requirement.

Merits. The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A propounding party may move for an order compelling further responses to requests for production if: 1) the response to a request for production is incomplete; 2) a representation of inability to comply is inadequate, incomplete, or evasive; or 3) an objection to the request is without merit or too general. CCP § 2031.310(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). "Good cause" can be established by showing the request was made in good faith and the documents sought are relevant to the action. *Associated Brewers Distributing Co. v. Superior Court of Los Angeles County* (1967) 65 Cal.2d 583, 588. Once good cause is established, the burden shifts to the opposing party to justify their objection. *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.

Here, Plaintiff seeks to compel further responses to 25 Requests for Production. Plaintiff sets forth the disputed Requests as falling into two categories:

1. RFPs 1, 2, 7, 15, 17, 29, 34, 46-50. Plaintiff argues that Defendant's responses contain boilerplate objections followed by a representation that it "will produce all nonprivileged, responsive documents." Defendant has not confirmed whether its production is complete, whether additional documents exist, whether responsive documents are being withheld subject to objections, or whether further production will be made. Plaintiff argues this makes the original and supplemental productions noncompliant with CCP §§ 2031.220-2031.240. The Court agrees, subject to the narrowing instruction noted below, and further production is ordered. Defendant must serve further verified responses, produce all responsive nonprivileged documents and/or confirm they have all been produced. To the extent responsive documents are withheld based on privilege or work product, Defendant must produce a privilege log.
2. RFPs 6, 9, 12, 16, 20, 36, 38, 41, 42, 44, 51-53. Plaintiff argues these consist solely of boilerplate objections or otherwise fail to provide substantive responses as required by CCP 2031.220. Defendant does not state whether responsive documents exist, whether a search was undertaken, whether it is able to comply and whether responsive documents are being withheld. Further production is ordered, subject to the narrowing instruction noted below.

Defendant must serve further verified responses, produce all responsive nonprivileged documents and/or confirm they have all been produced. To the extent responsive documents are withheld based on privilege or work product, Defendant must produce a privilege log.

Narrowing Instruction: Defendant argues that Plaintiff's RFPs 9, 42, 44, 47-51 are overbroad and unduly burdensome to the extent they seek documents relating to MDLZ's entire product line, without limitation to the Sour Patch Kids product at issue. This Court's order for further production is limited to documents related to the Sour Patch Kids product at issue, as Plaintiff has not demonstrated good cause for production of documents related to other products.

Sanctions: Monetary sanctions are mandatory against anyone who unsuccessfully makes or opposes a motion to compel further response to a demand unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2031.310(h). Plaintiff seeks \$2,100.00, representing six hours of attorney time at \$350 per hour. The Court finds no circumstances that would make the imposition of sanctions unjust. The time spent and hourly rate are reasonable and will be awarded.

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents is **GRANTED**, subject to the limitations detailed above. Defendant shall serve further verified, code-compliant responses, without objection except as to specifically identified privileged material, as detailed above within 20 days of this order. Sanctions of \$2,100.00 are imposed in favor of Plaintiff Fritchman against Mondelez Global, LLC. A proposed order was lodged and will be modified.

Tentative Ruling on Motion to Compel Further Responses to Special Interrogatories: Plaintiff Sabrina Fritchman moves to compel Defendant Mondelez Global, LLC to provide further responses to Plaintiff's Special Interrogatories, Set One and for monetary sanctions. Defendant opposes the motion.

Plaintiff alleges she was injured biting into a hard object in a package of Sour Patch Kids candy on February 3, 2022. On December 26, 2025, Plaintiff served 58 Special Interrogatories on Defendant Mondelez Global, LLC. Defendant served unverified responses on March 27, 2026. Following meet-and-confer efforts, Defendant served verified supplemental responses to Special Interrogatories Nos. 14, 15, 16, 19, 21-28, 46-50, and 54 on May 26, 2026. The remainder are still unverified. Plaintiff moves to compel further responses to 55 of the 58 interrogatories and requests \$3,500 in monetary sanctions.

Meet and Confer. Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration. The Declaration of attorney Saideh Ghasemi Moghadam establishes compliance with this requirement.

Merits. The scope of discovery is broad. Any matter that is admissible evidence or appears reasonably calculated to lead to the discovery of admissible evidence is relevant and subject to discovery. CCP § 2017.010. Any doubts as to the relevance should generally be resolved in favor of permitting discovery. *Colonial Life & Acc. Ins. Co. v. Sup. Ct.* (1982) 31 Cal.3d 785, 790. A party propounding interrogatories may move for further responses if the responses are evasive/incomplete or contain unmeritorious objections. CCP § 2030.300(a)(1) & (3). There is

no good cause requirement for compelling further interrogatory responses.

Verifications. CCP § 2030.250(a) requires that interrogatory responses be signed under oath unless the response contains only objections. Unverified substantive responses do not constitute substantial compliance and are treated as no responses at all. *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 635-636. Defendant's original March 27, 2026 responses were unverified. Defendant verified only the May 26, 2026 supplemental responses to Nos. 14, 15, 16, 19, 21-28, 46-50, and 54. To the extent Defendant elected to stand on substantive factual answers in its original responses to the remaining interrogatories, those answers remain unverified. Further verified responses are ordered.

Response by Reference to Writing. CCP § 2030.230 permits a party to answer by reference to a writing only where the burden of deriving the answer is substantially the same for both parties, and it requires the responding party to specify the writing with sufficient particularity to permit the answer to be located. Defendant's reliance on a five-page Corporate Quality Policy bearing a September 2023 revision date, more than a year after the February 2022 incident, does not answer interrogatories that ask what policies and procedures were in effect at the time of the incident. As to Nos. 21-28, Defendant is ordered to identify the policies and procedures that were in effect on the date of the incident, or to state that no such superseded version exists and explain the basis for that statement following a reasonable and diligent inquiry.

Privilege and Work Product Objections. Attorney-client privilege and work-product protection cover communications and mental impressions, not the underlying facts. To the extent Special Interrogatories Nos. 5-13, 35-43, and 51 seek facts, and not the content of privileged communications or counsel's mental impressions, the privilege and work-product objections are overruled.

Duplication. Defendant argues that certain interrogatories are duplicative (e.g., Nos. 3-4, 6-7, 22, 24, 26). However, for example, SROG 3 seeks the identity of persons who “distributed” the product while SROG 4 seeks the identity of persons who “sold” the product. Distribution and sale are distinct and may involve different personnel and records. The Court does not find these types of similarities duplicative. Further responses are ordered.

Undue Burden. As to interrogatories seeking information across Defendant’s entire global operations without temporal or product limitation (Nos. 33-34, 52-53) and Defendant’s complete contractual relationship with Raley's (No. 58), the Court agrees these interrogatories, as written, are overbroad. Plaintiff has represented, in her meet-and-confer correspondence and Separate Statement, that she is willing to accept responses limited to the subject product, substantially similar confectionery products, and substantially similar hard-object incidents. The Court will compel further responses to these interrogatories subject to the limitation that they concern only the subject product (and *not* substantially similar products and substantially similar hard-object incidents) rather than deny them outright.

Sanctions. Monetary sanctions are mandatory against anyone who makes or opposes a motion to compel further response to Form or Special Interrogatories unless the Court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. CCP § 2030.300(d). Plaintiff seeks \$3,500.00, representing ten hours of attorney time at \$350 per hour. The Court finds no circumstances that would make the imposition of sanctions unjust. The time spent and hourly rate are reasonable and will be awarded.

Plaintiff's Motion to Compel Further Responses to Requests for Production of Documents is **GRANTED**, subject to the limitations detailed above. Defendant shall serve further verified, code-compliant responses, without objection except as to specifically identified privileged material, to Special Interrogatories, Set One as detailed above within 20 days of this order. Sanctions of \$3,500 are imposed in favor of Plaintiff Fritchman against Mondelez Global, LLC. A proposed order was lodged and will be modified.

HILL, ET AL. VS. NELSON, ET AL.

CASE NUMBER: 25CV-0208635

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued to Plaintiff Kathleen Hill and her counsel on June 2, 2026 for their failure to timely serve pleadings on the defendants as required by CRC 3.110(b). The Complaint was filed on September 8, 2025. "The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint." CRC 3.110(b). It has now been over ten months and there is no Proof of Service of Summons on file. No written response to the Order to Show Cause was filed.

This matter first came on for hearing on July 13, 2026. Plaintiffs' counsel appeared and requested a continuance. The Court continued the hearing to today's date and directed counsel to file a declaration prior to today's hearing. No declaration has been filed. No proof of service of summons is on file.

With no sufficient excuse for the delay, the Court will impose sanctions in the amount of \$250 against Plaintiff and her counsel. The clerk is directed to prepare a separate Order of Sanctions. The Court will also issue an Order to Show Cause Re: Dismissal for failure to timely serve pursuant to CRC 3.110(b) and failure to timely prosecute. Hearing on the Order to Show Cause Re: Dismissal will be **Monday, October 19, 2026, at 8:30 a.m. in Department 64.** The clerk is directed to issue an Order to Show Cause Re: Dismissal.

KUNS, ET AL. VS. ESTES-KING, ET AL.

CASE NUMBER: 26CV-0210292

Tentative Ruling Motion for Preliminary Injunction: Plaintiffs Ronald and Tove Kuns move for a preliminary injunction against Defendants Linda Estes-King, Mark Teal, and The Roles Company, Inc. pending trial and entry of final judgment in this action. Specifically, Plaintiffs seek to enjoin Defendant from interfering with Plaintiffs' use of a roadway and bridge and to require Defendants to unlock a gate which currently obstructs passage over what Plaintiffs refer to as the "Prescriptive Area" as detailed in the Verified Complaint.

Merits: California Code of Civil Procedure section 526(a) provides an injunction may be granted, *inter alia*, when it appears by the complaint that the plaintiff is entitled to the relief demanded, and the relief, or any part thereof, consists in restraining the commission or continuance of the act complained of, either for a limited period or perpetually, or when it appears by the complaint or affidavits that the commission or continuance of some act during the litigation would produce waste, or great or irreparable injury, to a party to the action. In considering whether to issue a preliminary injunction, a court evaluates two interrelated factors: the likelihood plaintiff will prevail on the merits at trial and the interim harm to plaintiff or defendant if the court denies or grants the preliminary injunction. (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 528.)